

Present
Mr. Justice Sheikh Abdul Awal
Criminal Revision No. 2485 of 2019

Md. Japan Biswash

.....Convict-Petitioner.

-Versus-

The State and another.

.....Opposite party.

Mr. S.M. Rifaz Uddin, Advocate

.....For the Petitioner.

Ms. Shahida Khatoon, D.A.G with

Ms. Sabina Perven, A.A.G with

Ms. Kohenoor Akter, A.A.G.

.... For the State-Opposite party No.1.

Mr. Md. Jahangir Alam, Advocate

.... For the opposite party No.2

Heard on 31.01.2024 and

Judgment on 01.02.2024

Sheikh Abdul Awal, J:

This Rule was issued calling upon the opposite parties to show cause as to why the impugned judgment and order dated 13.09.2018 passed by the learned Additional Sessions Judge, 2nd Court, Kushtia in Criminal Appeal No. 294 of 2015 dismissing the appeal

and affirming the judgment and order of conviction and sentence dated 28.07.2015 passed by the learned Senior Judicial Magistrate, 1st Court, Kushtia in C.R Case No. 460 of 2013 convicting the petitioner under section 418 of the Penal Code and sentencing him thereunder to suffer rigorous imprisonment for a period of 1(one year should not be set-aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

Material facts of the case are that one, Md. Abdur Razzak as complainant filed a petition of complainant being C.R Case No. 460 of 2013 in the Court of the learned Additional Chief Judicial Magistrate, Kushtia under section 406/420 of the Penal Code against the convict petitioner alleging, inter-alia, that due to need of money the accused took Taka 1,02,400/- as loan from the complainant opposite party No.2 by executing an agreement. Thereafter, the accused refused to pay the loan money as per terms and condition and thereafter the complainant finding no other way filed the case.

On receipt of the petition of complaint, the learned Judicial Magistrate, 1st Court, Kushtia examined the complainant under section 200 cr. p. c. and took cognizance against the accused-petitioner under section 406/420 of the Penal Code.

Thereafter, the police arrested the accused-petitioner and forwarded to the Court and the accused petitioner was obtained bail on 30.04.2014.

Ultimately, the accused-petitioner was put on trial before the learned Senior Judicial Magistrate, 1st Court, Kushtia, who framed charge under sections 418 of the Penal Code, 1881 in-absentia against the accused-petitioner as the accused became absconding after being enlarged on bail. Trial was also held in-absentia as the accused-petitioner was absconding.

At the trial, the complainant examined in all 3(three) witnesses to prove the case while the defence examined none.

The learned Senior Judicial Magistrate, 1st Court, Kushtia after completion of trial by his judgment and order dated 28.07.2018 found the accused-petitioner guilty under section 418 of the Penal Code, 1860 and sentenced him thereunder to suffer rigorous imprisonment for a period of 1(one) year.

Against which the present accused-petitioner preferred Criminal Appeal No. 294 of 2015 before the learned Sessions Judge, Kushtia which was subsequently transmitted to the Court of the learned Additional Sessions Judge, 2nd Court, Kushtia for

disposal, who by the impugned judgment and order dated 13.09.2018 dismissed the appeal and affirmed the judgment and order of conviction passed by the trial Court.

Being aggrieved by the aforesaid impugned judgment and order dated 13.09.2018 passed by the learned Additional Sessions Judge, 2nd Court, Kushtia the convict-petitioner moved before this Court and obtained the present Rule.

Mr. S.M. Rifaz Uddin, the learned Advocate appearing for the convict-petitioner and Mr. Md. Jahangir Alam, the learned Advocate appearing for the complainant-opposite party No.2 after placing an application for compromise jointly submitted that during the pendency of the instant Rule, the subject matter of the case has already been compromised in between the parties out of the Court and accordingly, they made an “apashnama” dated 30.01.2024 and according to “apashnama” the convict-petitioner has already paid entire outstanding dues to the complainant opposite party No.2.

Having heard the learned Advocates for both the sides, perused the deed of “apashnama” as evidenced by “annexure-F” to the supplementary affidavit dated 29.11.2023 and also perused the application for

acquitting the convict -petitioner filed by the learned Advocates for both the parties by putting their joint signatures and other materials on record.

On going through the materials on record, it appears that the subject matter of the case has been compromised in between the parties out of the Court and the convict-petitioner has already paid the entire outstanding dues to the complainant opposite party No.2.

Having regard to the submission made by the learned Advocates for both the parties, I am of the view that there is no reason to accept the compromise entered into between the parties. Section 418 is compoundable offence. Since the proceeding arises out of monetary transaction, I am of the view that the dispute between the parties has been resolved out of Court by the parties on compromise which should be allowed by the Court at any stage of the proceeding even at appellate or revisional stage. Beside provision of section 418 is compoundable.

For the reasons stated above, I allow the prayer made on behalf of the contesting parties with the direction that compromise done by the parties is hereby accepted and dispose of the Rule on the basis of the said compromise.

In the result, the Rule is made absolute by holding that since the matter has been compromised between the parties and the amount in terms of the said compromise has been paid, the convict petitioner is entitled to acquittal.

The impugned judgment and order dated 13.09.2018 passed by the learned Additional Sessions Judge, 2nd Court, Kushtia in Criminal Appeal No. 294 of 2015 dismissing the appeal and affirming the judgment and order of conviction and sentence dated 28.07.2015 passed by the learned Senior Judicial Magistrate, 1st Court, Kushtia in C.R Case No. 460 of 2013 against the petitioner is set-aside and the convict petitioner is acquitted of the charge under Section 418 of the Penal Code levelled against him.

Convict petitioner, Md. Japan Biswas is discharged from his bail bond.

Send down the lower Court records at once.

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Thereafter, the police arrested the accused-petitioner and forwarded to the Court and the accused petitioner was obtained bail on 30.04.2014.

Ultimately, the accused-petitioner was put on trial before the learned Senior Judicial Magistrate, 1st Court, Kushtia, who framed charge under sections 418 of the Penal Code, 1881 in-absentia against the accused-petitioner as the accused became absconding after being enlarged on bail. Trial was also held in-absentia as the accused-petitioner was absconding.

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Mr. S.M. Rifaz Uddin, the learned Advocate appearing for the convict-petitioner and Mr. Md. Jahangir Alam, the learned Advocate appearing for the complainant-opposite party No.2 after placing an application for compromise jointly submitted that during the pendency of the instant Rule, the subject matter of the case has already been compromised in between the parties out of the Court and accordingly, they made an “apashnama” dated 30.01.2024 and according to “apashnama” the convict-petitioner has already paid entire outstanding dues to the complainant opposite party No.2.

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Having regard to the submission made by the learned Advocates for both the parties, I am of the view that there is no reason to accept the compromise entered into between the parties. Section 418 is compoundable offence. Since the proceeding arises out of monetary transaction, I am of the view that the dispute between the parties has been resolved out of Court by the parties on compromise which should be allowed by the Court at any stage of the proceeding even at appellate or revisional stage. Beside provision of section 418 is compoundable.

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